

STATE OF NEW YORK

10866--C

IN ASSEMBLY

April 8, 2026

Introduced by M. of A. PHEFFER AMATO -- read once and referred to the Committee on Cities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the city of New York to discontinue certain parkland in the borough of Queens

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subject to the provisions of this act, but notwithstanding
2 any provision of law to the contrary, the city of New York is hereby
3 authorized, upon such terms and conditions as the city shall determine,
4 to discontinue the use as parklands and alienate the lands described in
5 section three of this act and to transfer such land to the metropolitan
6 transportation authority for the purpose of enabling the New York city
7 transit authority to construct a new permanent at-grade and subsurface
8 signal tower facility and track crossover.
- 9 § 1-a. Notwithstanding the failure of the city of New York to seek and
10 receive state legislative authorization to alienate certain parklands as
11 described in section three of this act prior to the parklands being
12 alienated and transferred to the metropolitan transportation authority
13 such alienation is hereby validated, legalized, ratified and confirmed.
- 14 § 2. The authorization provided in section one of this act shall be
15 effective only upon the condition that the city of New York dedicates an
16 amount equal to or greater than the fair market value of the parklands
17 being discontinued towards the acquisition of new parklands and/or capi-
18 tal improvements to existing parklands and recreational facilities with-
19 in the borough of Queens.
- 20 § 3. The lands hereby authorized by section one of this act to be
21 discontinued as parkland and transferred to the metropolitan transporta-
22 tion authority are located in the county of Queens, city and state of
23 New York, and are bounded and described as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD15370-06-6

1 ACQUISITION OF PROPERTY RIGHTS WITHIN TAX LOT 10 IN BLOCK 16160, WITH
2 ADDRESS OF 3-11 BEACH 104 STREET, BOROUGH OF QUEENS:

3 BEGINNING AT THE POINT OF COMMENCEMENT, (N=152034319, E=1032672.026)
4 (NAO 83 (2011), NEW YORK LONG ISLAND ZONE NUMBER (3104) WITNESSED BY A
5 CROSS CUT IN THE CONCRETE, WHICH IS AT THE INTERSECTION OF WESTERLY
6 RIGHT OF WAY LINE OF BEACH 104TH STREET, A FIFTY FEET WIDTH RIGHT OF
7 WAY, AND NORTHERLY RIGHT OF WAY LINE OF ROCKAWAY FREEWAY, A FIFTY FEET
8 WIDTH RIGHT OF WAY, RUNNING THENCE;

9 AT A DISTANCE OF 190.20 FEET AND BEARING ANGLE OF S=69°-40'-23" W TO A
10 POINT LOCATED ON THE NORTHERLY RIGHT OF WAY LINE OF ROCKAWAY FREEWAY
11 (N=151968.247, E 1032493.671), THENCE;

12 A DISTANCE OF 5.00 FEET AND ANGLE OF N=22'-11'-20" W, TO A POINT
13 LOCATED ON THE BORDER OF BLOCK 16160 AND BLOCK 16161 (N=151972.879,
14 E=1032491.781), THENCE;

15 A DISTANCE OF 190.20 FEET AND ANGLE OF N=69°-40'-23" E, PARALLEL WITH
16 ROCKAWAY FREEWAY RIGHT OF WAY, TO A POINT ON THE WESTERLY RIGHT OF WAY
17 LINE OF BEACH 104TH STREET (N=152038.951, E=1032670.137), THENCE;

18 A DISTANCE OF 5.00 FEET AND ANGLE OF S=22°-11'-20" E, TO THE POINT OF
19 COMMENCEMENT, AND CONTAINING WITHIN SAID BOUNDS 951 SQ. FT. OR 0.022
20 ACRES, MORE OR LESS.

21 § 4. Should the lands described in section three of this act cease to
22 be used for the purposes described in section one of this act, such
23 lands shall revert to the city of New York for public park and recre-
24 ational purposes.

25 § 5. In the event that the city of New York received any funding,
26 support or assistance from the federal government for the purchase,
27 maintenance or improvement of the parklands set forth in section three
28 of this act, the discontinuance and alienation of such parkland author-
29 ized by the provisions of this act shall not occur until the city of New
30 York has complied with any federal requirements pertaining to the alien-
31 ation or conversion of such parklands, including satisfying the secre-
32 tary of the interior that the alienation or conversion complies with all
33 conditions which the secretary of the interior deems necessary to assure
34 the substitution of other lands shall be equivalent in fair market value
35 and usefulness to the lands being alienated or converted.

36 § 6. This act shall take effect immediately.